

Court No. - 34

Case :- WRIT - C No. - 20338 of 2020

Petitioner :- Ikbāl Ahmad

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner.

Sri N.K. Tiwari, learned Advocate has received notices on behalf of the respondent No.2.

In the present writ petition, the prayer has been made to issue a direction to the respondent No.2 to discharge the petitioner from accusation of electricity theft in light of the request made by him on 8.9.2020.

We may note that in the matter of electricity theft, the proceeding for taking cognizance of offence are undertaken under Clause 8.1 of the Electricity Supply Code, 2005. It is open for the petitioner to participate in the said proceeding by approaching the competent authority who may look into the matter and take a decision in accordance with law.

In view of the alternative statutory remedy available to the petitioner, the writ petition is dismissed.

Order Date :- 9.12.2020

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